

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Deanna Medina	Team: Squad #12	CCRB Case #: 202309830	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 10/18/2023 6:55 AM	Location of Incident: 513 Bergen Street	18 Mo. SOL 4/18/2025	Precinct: 78		
Date/Time CV Reported Wed, 10/18/2023 1:16 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 10/18/2023 1:16 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Joseph Abate	00578	941301	078 PCT
2. SGT William Mcknight	03576	955171	078 PCT
3. PO Diane Hopkins	25021	952861	078 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO John Padormo	18102	907000	078 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Diane Hopkins	Force: Police Officer Diane Hopkins used physical force against § 87(2)(b)	
B . SGT William Mcknight	Abuse: Sergeant William Mcknight threatened § 87(2)(b) with the use of force.	
C . PO Joseph Abate	Force: Police Officer Joseph Abate used physical force against § 87(2)(b)	
D . PO Joseph Abate	Force: Police Officer Joseph Abate used physical force against § 87(2)(b)	

Case Summary

§ 87(2)(b) filed this complaint via the CCRB's online website on October 18, 2023.

At approximately 6:55 AM on October 18, 2023, in the vicinity of 513 Bergen Street in Brooklyn, § 87(2)(b) was riding a bicycle when he saw Sgt. Williams McKnight of the 78th Precinct, operating his personal vehicle, reversing to park on a sidewalk near the 78th Precinct stationhouse. § 87(2)(b) rode behind Sgt. McKnight's vehicle, dismounted his bicycle, and stepped onto the sidewalk behind Sgt. McKnight's to prevent Sgt. McKnight from parking on the sidewalk. PO Diane Hopkins of the 78th Precinct approached § 87(2)(b) and attempted to pull his bicycle away from him (**Allegation A: Force, Substantiated**). PO Joseph Abate and PO John Padormo then also arrived on scene. Sgt. McKnight, the driver of the vehicle, said to § 87(2)(b) "I should have just not stopped. That would have ruined your day" (**Allegation B: Abuse of Authority, Substantiated**). PO Abate then attempted to pull § 87(2)(b) bicycle away from him and pushed and pulled § 87(2)(b) from where he stood so that Sgt. McKnight could park (**Allegations C and D: Force, Substantiated**). There is no summons or arrest associated with this incident.

The CCRB obtained two body-worn camera (BWC) videos associated with this incident (Board Review 01), summarized in IA #61 (Board Review 02). The CCRB also obtained a video recorded on a camera mounted on § 87(2)(b) bicycle helmet (Board Review 04), summarized in IA #27.

Findings and Recommendations

Allegation (A) Force: Police Officer Diane Hopkins used physical force against § 87(2)(b)

Allegation (C) Force: Police Officer Joseph Abate used physical force against § 87(2)(b)

Allegation (D) Force: Police Officer Joseph Abate used physical force against § 87(2)(b)

§ 87(2)(b) provided a statement to the CCRB via telephone on October 31, 2023 (Board Review 03). He stated that on October 18, 2023, at approximately 6:55 AM, he was riding a Citi Bike along Bergen Street, coming from Carlton Avenue and headed toward Sixth Avenue. § 87(2)(b) saw a car reversing to park on the sidewalk. § 87(2)(b) rode toward the car, dismounted from his bicycle, and stepped onto the sidewalk behind the car. § 87(2)(b) and his bicycle were on the sidewalk, about two feet from the curb, with the bicycle positioned between the car and § 87(2)(b). The car stopped a few feet away from the curb. The driver of the car (identified as Sgt. McKnight), motioned with his hand out of the window to § 87(2)(b) indicating that he could not move out of the way of traffic because of § 87(2)(b). § 87(2)(b) replied that Sgt. McKnight was blocking traffic. Sgt. McKnight told § 87(2)(b) to move, and § 87(2)(b) responded that it was illegal to park on the sidewalk.

Approximately three minutes later, an officer identified as PO Hopkins approached § 87(2)(b). PO Hopkins told § 87(2)(b) that she would move his bicycle. She then took hold of § 87(2)(b) bicycle and began to pull it away. § 87(2)(b) pulled the bicycle back and said that PO Hopkins could not take his bicycle. PO Hopkins and § 87(2)(b) pulled the bike back and forth for about 20 seconds. Sgt. McKnight then exited his car and told PO Hopkins not to worry because "uniforms" were coming. PO Hopkins then left the scene and § 87(2)(b) maintained possession of his bicycle. He also remained standing behind Sgt. McKnight's vehicle, preventing Sgt. McKnight from parking on the sidewalk.

One to two minutes after PO Hopkins left, two uniformed officers, identified as PO Abate and PO Padormo, arrived on scene. PO Abate asked § 87(2)(b) what was happening. § 87(2)(b) said he was a pedestrian on the sidewalk and that he would not move to allow Sgt. McKnight to park

illegally. § 87(2)(b) and PO Abate argued about whether the sidewalk constituted an authorized police parking area. During this time, Sgt. McKnight also made remarks to § 87(2)(b) that are addressed in the analysis of Allegation B, below. Finally, PO Abate and PO Padormo then activated their BWCs. PO Abate then took hold of § 87(2)(b) bicycle. § 87(2)(b) asked PO Abate, “If you take my bike, what are you going to do with it?” PO Abate said that he was going to move it. § 87(2)(b) said PO Abate could not take his bike. PO Abate pulled § 87(2)(b) bicycle away and moved it to a nearby fence. PO Abate gestured to Sgt. McKnight, encouraging Sgt. McKnight to begin backing his car onto the sidewalk. PO Abate said to § 87(2)(b) “Excuse me,” moved his chest against § 87(2)(b) body, and pushed § 87(2)(b) with his chest for about five to ten seconds. PO Abate also took hold of the right sleeve of § 87(2)(b) sweater and pulled § 87(2)(b). § 87(2)(b) raised his hands to show that he was not trying to fight PO Abate. PO Abate then took hold of § 87(2)(b) backpack strap and pulled it. § 87(2)(b) pulled back to remain where he was standing, but PO Abate pulled § 87(2)(b) from where he stood to about six to ten feet away, moving him toward the fence. At the same time, Sgt. McKnight’s vehicle backed up to park on the sidewalk. By the time PO Abate had fully moved § 87(2)(b) to the fence, Sgt. McKnight’s vehicle was parked on the sidewalk.

As noted, the investigation obtained video recorded on a camera mounted on § 87(2)(b) bicycle helmet (Board Review 04), summarized in IA #27 (Board Review 05). The video captures the entirety of the incident and includes audio throughout. § 87(2)(b) video begins with him riding his bicycle along Bergen Street. At 13 seconds, § 87(2)(b) briefly comes to a stop. At 28 seconds, § 87(2)(b) observes an SUV preparing to reverse onto a sidewalk. At 30 seconds, § 87(2)(b) rides behind the SUV and steps onto the sidewalk, preventing the SUV from parking. The SUV drives away. At 44 seconds, § 87(2)(b) remounts his bicycle and continues riding along Bergen Street. At 54 seconds, § 87(2)(b) encounters Sgt. McKnight’s white sedan preparing to reverse onto a sidewalk. § 87(2)(b) dismounts again and steps onto the sidewalk behind Sgt. McKnight’s vehicle, preventing him from reversing onto the sidewalk. § 87(2)(b) yells, “This is a sidewalk. You can’t park here.” He makes several similar statements as other vehicles begin to honk at Sgt. McKnight. At 1 minute 48 seconds, § 87(2)(b) extends his bicycle’s kick stand and leaves the bicycle standing freely on the sidewalk near the curb. § 87(2)(b) then argues with another driver about whether Sgt. McKnight can park on the sidewalk.

At 3 minutes 50 seconds, PO Hopkins, in plainclothes, approaches § 87(2)(b) on foot. § 87(2)(b) says, “Oh no, this is mine,” and takes hold of the bicycle. PO Hopkins says, “I know,” as she takes hold of the handlebars and attempts to pull the bicycle from § 87(2)(b). § 87(2)(b) says that she cannot move the bicycle and PO Hopkins answers, “Yes, I can.” § 87(2)(b) says, “Ma’am, remove your hands from my bicycle.” PO Hopkins says, “No.” § 87(2)(b) says, “What are you doing?” PO Hopkins says, “You have to move this.” § 87(2)(b) says, “I absolutely don’t.” PO Hopkins says, “Yes, you do.” All the while, PO Hopkins continues attempting to pull the bicycle from § 87(2)(b). § 87(2)(b) asks, “Why? Tell me why.” PO Hopkins says, “Because we are backing up.” § 87(2)(b) says, “You can’t park here.” At 4 minutes 9 seconds, Sgt. McKnight exits the white sedan and stands by the driver’s side door. Sgt. McKnight says, “Just wait for the uniforms to get here.” PO Hopkins releases § 87(2)(b) bicycle and walks away.

At 4 minutes 15 seconds, § 87(2)(b) asks Sgt. McKnight, “Why do you think you can park here?” Sgt. McKnight says, “Because I’m allowed to,” and, “Check the signs.” § 87(2)(b) argues that the signs allow for officers to park parallel to the curb, which Sgt. McKnight disputes. § 87(2)(b) offers to read from a Finest message and appears to pull up an NYPD Finest message on his smartphone.

At 5 minutes 27 seconds, PO Abate approaches and asks § 87(2)(b) “What’s up?” § 87(2)(b) says that he is a pedestrian and is “just standing here.” PO Abate says, “I know, but he’s trying to park though.” When § 87(2)(b) says that Sgt. McKnight cannot park on the sidewalk, PO Abate says that it is “police parking.” Again, § 87(2)(b) says that police parking is in the street, gesturing in a motion parallel to the curb, and says that the sidewalk is for pedestrians. § 87(2)(b) argues that no one can enforce the law against police officers because they themselves are the city’s enforcement mechanism. § 87(2)(b) offers to read aloud from a city council law barring officers from parking on sidewalks. A similar back-and-forth ensues. PO Padormo approaches at 6 minutes 22 seconds. At 6 minutes 30 seconds, when § 87(2)(b) offers to read aloud the law and the Patrol Guide, PO Abate says that he is already familiar with § 87(2)(b) and gestures in the direction of the 78th Precinct stationhouse, apparently referring to another earlier incident when § 87(2)(b) argued with PO Luilly Baez of the 78th Precinct about police parking (an interaction addressed in CCRB § 87(2)(b)). At 6 minutes 38 seconds, PO Abate says, “I don’t know the legality of it.” Additional back-and-forth ensues regarding officers’ vehicles blocking portions of the sidewalk. At 7 minutes 52 seconds, § 87(2)(b) says, “I can stand on the sidewalk.” PO Abate says, “You can stand on the sidewalk. I know.”

Between 9 minutes 55 seconds and 10 minutes 57 seconds, § 87(2)(b) and Sgt. McKnight argue again about whether officers may lawfully “combat park” (perpendicular to the roadway with the vehicle’s nose facing into the roadway) on the sidewalk. This portion of the interaction is addressed below in the analysis of Allegation B.

At 11 minutes 55 seconds, PO Abate announces that he will “go on,” and activates his BWC. At 12 minutes 7 seconds, PO Abate says, “Alright, I tried for it to not come to this. He has to park. We all have to go to work.” PO Abate takes hold of § 87(2)(b) bicycle and begins pulling it away from the curb. § 87(2)(b) says, “Sir, you cannot take my bicycle.” PO Abate says, “I am not taking it. I am just moving it out of the way.” § 87(2)(b) says, “Man, you have to let go of my bicycle.” PO Abate and § 87(2)(b) both pull on the bicycle in opposite directions. This continues until 12 minutes 59 seconds, when PO Abate pulls the bicycle from § 87(2)(b) grip and moves it across the sidewalk. PO Padormo asks § 87(2)(b) to move away from the curb and § 87(2)(b) refuses. At 13 minutes 15 seconds, PO Abate approaches the curb and motions for Sgt. McKnight to back his car up. At 13 minutes 27 seconds, PO Abate says, “Excuse me now, I just have to step over here.” PO Abate moves his chest against § 87(2)(b) right side. PO Abate says again, “Please, I just have to step over here.” § 87(2)(b) says, “What are you doing? You are very close to me.” PO Abate leans against § 87(2)(b) moving him aside. At 13 minutes 48 seconds, PO Abate takes hold of § 87(2)(b) right sleeve and begins pulling him away from the curb. PO Abate says, “Step aside. Step aside.” § 87(2)(b) says, “Remove your hand from me.” PO Abate takes hold of § 87(2)(b) backpack strap and pulls him away from the curb. § 87(2)(b) says, “Get off of me.” PO Abate pulls § 87(2)(b) away from the curb. Afterward, PO Abate provides § 87(2)(b) with a business card. § 87(2)(b) then remounts his bicycle and rides away.

PO Hopkins was interviewed at the CCRB on December 5, 2023 (Board Review 06). She stated that just prior to this incident, she was parking her car nearby and heard a commotion. PO Hopkins did not know that it was Sgt. McKnight who was parking the white sedan until he exited his vehicle. § 87(2)(b) prevented Sgt. McKnight from parking by placing his bicycle in the way. PO Hopkins approached § 87(2)(b) and took hold of his bicycle. PO Hopkins did not issue § 87(2)(b) any command before doing so. PO Hopkins said to § 87(2)(b) “Just move,” as she took hold of § 87(2)(b) bicycle. PO Hopkins took hold of § 87(2)(b) bicycle to move § 87(2)(b) so that Sgt. McKnight could park his vehicle. There was no other reason why PO Hopkins pulled § 87(2)(b) bicycle. PO Hopkins ultimately did not pull § 87(2)(b) bicycle away from him

because Sgt. McKnight told PO Hopkins that other officers were on the way. PO Hopkins saw two uniformed officers walking toward the scene, and so she walked away.

PO Abate was interviewed at the CCRB on December 5, 2023 (Board Review 13). He stated that he and PO Padormo were notified by the desk sergeant that Sgt. McKnight was having an issue parking his car outside, where a man was blocking the parking spot with his bike. The desk sergeant asked PO Abate to assist Sgt. McKnight but did not provide other instruction. PO Abate walked with PO Padormo to help Sgt. McKnight. They found § 87(2)(b) standing at the edge of the curb behind Sgt. McKnight's vehicle. It was lawful for § 87(2)(b) to stand in that position on the sidewalk. PO Abate approached § 87(2)(b) and asked, "What are we doing here? Why are you stopped here? Where are we going with this? What exactly is the issue today?" § 87(2)(b) told PO Abate that he was merely standing there and that Sgt. McKnight was not allowed to park on the sidewalk.

PO Abate asked § 87(2)(b) to move multiple times, but § 87(2)(b) did not comply. PO Abate then "had to" physically remove the bicycle and § 87(2)(b) from the path of Sgt. McKnight's vehicle. PO Abate took hold of § 87(2)(b) bicycle to move it out of the way of Sgt. McKnight's vehicle, and for no other reason. PO Abate then motioned for Sgt. McKnight to back up his car because "There was enough of this back and forth." When Sgt. McKnight began reversing his vehicle, PO Abate grabbed and moved § 87(2)(b) bicycle. PO Abate moved § 87(2)(b) aside by pulling on § 87(2)(b) right arm and backpack strap. PO Abate also pushed § 87(2)(b) body with his own body by walking into him. He did so to move § 87(2)(b) out of the path of the car. There was no other reason PO Abate moved § 87(2)(b) did not pose any threat.

Per New York State Vehicle and Traffic Law 1202(a)1b, except when necessary to avoid conflict with other traffic, or when in compliance with the law or directions of a police officer or official traffic-control device, no person shall stop, stand, or park a vehicle on a sidewalk (Board Review 20).

According to Finest Message #38873358 and NYPD Patrol Guide procedure 219-29, officers are never permitted, absent exceptional circumstances, to park on sidewalks (Board Review 08 and 10). The finest message reads, "All members of the service are reminded that absent 'urgent or necessary police action,' there is no valid verifiable defense for parking any vehicle operated by a member of the service, on or off-duty, with or without a department-issues parking permit under the following conditions: ... D. Sidewalk." The language in Patrol Guide Procedure 219-29 is identical. Similarly, NYPD Patrol Guide procedure 209-30 states that summonses issued for the safety violations including parking on a sidewalk are not eligible for a "Valid Verifiable Defense," absent urgent police action or necessary police action (Board Review 09).

According to NYPD Patrol Guide Procedure 221-01, officers may use force may when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. Further, any application or use of force must be reasonable under the circumstances (Board Review 07).

Per NYS VTL 1202, parking on sidewalks is illegal. Further, the above-cited Finest Message and Patrol Guide procedures establish clearly that officers may not park on sidewalks absent exceptional circumstances. § 87(2)(g)

It is

undisputed that PO Hopkins and PO Abate took hold of § 87(2)(b) bicycle, which was in his grasp, and pulled it away from home, and that PO Abate pulled and pushed § 87(2)(b) § 87(2)(g)

It is therefore recommended that **Allegations A, C, and D** be closed as **Substantiated**.

Allegation (B) Abuse of Authority: Sergeant William McKnight threatened § 87(2)(b) with the use of force.

§ 87(2)(b) did not make the following allegations against Sgt. McKnight, but video of this incident captured apparent misconduct.

As noted above, the investigation obtained video footage from a camera mounted on § 87(2)(b) bicycle helmet (Board Review 04). At 10 minutes 26 seconds, Sgt. McKnight says, “You’re lucky I stopped and saw you when you flew behind me as I was backing up.” § 87(2)(b) replies, “Flew behind you? Eat shit.” Sgt. McKnight says, “That’s exactly what happened.” § 87(2)(b) says, “You’re ‘lucky’ you didn’t hit someone who’s on the sidewalk,” to which Sgt. McKnight replies, “No, it was clear until someone with a bike flew behind me.” § 87(2)(b) says, “And was on the sidewalk?” At 10 minutes 43 seconds, Sgt. McKnight says to § 87(2)(b) “I should have just not stopped, because that would have ruined your day.” § 87(2)(b) says, “You should have hit me with your car.” Sgt. McKnight says, “Because you flew behind me, yeah.”

Sgt. McKnight was interviewed at the CCRB on December 5, 2023 (Board Review 11). He stated that he was parking his personal vehicle outside of the stationhouse when he looked over his right shoulder and saw § 87(2)(b) drag his bicycle onto the sidewalk behind the car. Sgt. McKnight was reversing onto the sidewalk to park “combat” style. § 87(2)(b) stood on the sidewalk approximately three feet from the rear of Sgt. McKnight’s car, preventing him from parking. After two uniformed officers arrived on scene to assist, Sgt. McKnight said to § 87(2)(b) “I should have just not stopped. That would have ruined your day.” Sgt. McKnight made this statement out of frustration with § 87(2)(b). There was no other reason for this remark. However, Sgt. McKnight clarified that he would never have intentionally struck hit § 87(2)(b) with his car. Rather, this statement was only an expression of frustration.

According to NYPD Patrol Guide Procedure 221-01, officers may use force may when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. Further, any application or use of force must be reasonable under the circumstances (Board Review 07).

It is undisputed that Sgt. McKnight said to § 87(2)(b) that he “should have” hit § 87(2)(b) with his vehicle. This was confirmed when § 87(2)(b) asked, “You should have just hit me with your car,” to which Sgt. McKnight said, “Yeah, that would have just ruined your day.” § 87(2)(g)

When Sgt. McKnight made these remarks, he was standing near the open driver’s side door of his vehicle, § 87(2)(g)

§ 87(2)(g) As such, it is recommended that **Allegation B** be closed as **Substantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
- PO Abate has been a member of service for 17 years and this is the first CCRB complaint to which he has been a subject (Board Review 15).
- Sgt. McKnight has been a member of service for ten years and has been a subject in two CCRB complaints and three allegations, none of which were substantiated (Board Review 16). § 87(2)(g)
- PO Hopkins has been a member of service for 11 years and has been a subject in four CCRB complaints and six allegations, none of which were substantiated (Board Review 17). § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of November 14, 2023, the New York City Office of the Comptroller had no record of a Notice of Claim being filed in regard to this incident (Board Review 18).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 12

Investigator:	<u>Deanna Medina</u>	<u>Inv. Deanna Medina</u>	<u>12/12/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Samuel Ross</u>	<u>IM Samuel Ross</u>	<u>12/13/2023</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date